

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 14, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, AUGUST 14, 2026 at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, AUGUST 13, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: PARTIES MAY REQUEST A REMOTE APPEARANCE FOR ORAL ARGUMENT. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0064675 BANK OF THE WEST v. SALAZAR, CARL

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Plaintiff's Motion for Assignment Order

Ruling on Request for Judicial Notice

Plaintiff's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Motion

The unopposed motion is granted. (Code of Civil Procedure section 708.510.) The rights to commissions payments for defendant Carl Salazar are hereby subject to an assignment order whereby twenty percent (20%) of the net proceeds of any commissions earned by defendant Carl Salazar are assigned to plaintiff Bank of the West until the outstanding judgment is paid in full.

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2. M-CV-0077118 ON DECK CAPITAL v. BERG, DONALD

Plaintiff's Motion to Enter Judgment Pursuant to CCP§664.6

The unopposed motion is granted.

Judgment in the amount of \$10,075.45 is entered against defendant Donald Berg, which includes \$9,562.29 in principal and \$513.16 in costs.

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3. M-CV-0090614 SIERRA WES WALL SYS v. HANLON, BRANDON

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Defendant Brandon Hanlon's Motion for Leave to File Cross-Complaint

The motion is denied.

Defendant failed to provide a copy of the proposed cross-complaint to the court for review.

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4. M-CV-0091504 ADAMS, MARK v. LACK FAM INVST

This tentative ruling is issued by the **HONORABLE MICHAEL W. JONES:**

Plaintiff's motion for sanctions is continued to **OCTOBER 1, 2026 at 8:30 A.M. in DEPARTMENT 3** to be heard by the **HONORABLE MICHAEL W. JONES.**

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5. M-CV-0097899 TILDEN-THE EVERETTE v. PAYNE, ANTHONY

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Defendant Anthony Payne's Motion to Set Aside Default and Default Judgment

Ruling on Request for Judicial Notice

Plaintiff's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Motion

The motion is denied.

Defendant has not made a sufficient showing of mistake, inadvertence, surprise, and/or excusable neglect to support the requested relief. (Code of Civil Procedure section 473(b).)

The stay is dissolved forthwith. Plaintiff may proceed with enforcement proceedings.

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6. **S-CV-0045558 CAUCHI, VINCENT v. VERNON, RAQUELLE**

Plaintiff's Motion to Set Trial Date

The appearances of the parties are required for the hearing.

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7. S-CV-0049238 McCREARY, CAMERON v. VICARA HOA

The reserved hearing for Peter Hakim Esq's motion to be relieved as counsel is dropped from the calendar as no moving papers were filed with the court.

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8. S-CV-0053326 AA FIRE SYS v. SHILES, AARON

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Plaintiff's Motion to Compel Compliance with Deposition Subpoena as to Non-Party Core & Main and Monetary Sanctions

Joinder of Defendants Aaron Shiles and Compliant Fire Systems, LLC to Defendants Jay White; James McCasland; Craig Hanson; and Leticia Avila's Opposition to the Motion

The court acknowledges defendants Aaron Shiles and Compliant Fire Systems, LLC's joinder to the opposition. Nonetheless, the court will not consider any joinder as it pertains to monetary sanctions.

Ruling on Motion

The motion is denied.

Plaintiff has not sufficiently established that all other parties to the action were served with a copy of the deposition subpoena. (Code of Civil Procedure section 2025.240(a).)

Monetary sanctions in the amount of \$731.25 are imposed upon plaintiff and plaintiff's counsel, jointly and severally.

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8. S-CV-0053326 AA FIRE SYS v. SHILES, AARON

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Plaintiff's Motion to Compel Compliance with Deposition Subpoena as to Non-Party GFP Guard Fire Protection Services, Inc. and Monetary Sanctions

Joinder of Defendants Aaron Shiles and Compliant Fire Systems, LLC to Defendants Jay White; James McCasland; Craig Hanson; and Leticia Avila's Opposition to the Motion

The court acknowledges defendants Aaron Shiles and Compliant Fire Systems, LLC's joinder to the opposition. Nonetheless, the court will not consider any joinder as it pertains to monetary sanctions.

Ruling on Motion

The motion is denied.

Plaintiff has not sufficiently established that all other parties to the action were served with a copy of the deposition subpoena. (Code of Civil Procedure section 2025.240(a).)

Monetary sanctions in the amount of \$731.25 are imposed upon plaintiff and plaintiff's counsel, jointly and severally.

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9. S-CV-0054058 EULBERG, DAVID v. C.W. ROEN CONST CO

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Defendant C.W. Roen Construction Company, Inc.'s Demurrer to the Second
Amended Complaint (SAC)

The appearances of the parties are required for the hearing.

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10. S-CV-0054225 WAMPLER, DAVID v. FLAGG, KEOKI

Plaintiff's Motion for Relief Pursuant to Code of Civil Procedure section 473(b)

The appearances of the parties are required at the hearing.

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11. S-CV-0054259 FARBER, JOHN v. APPLES & HONEYBEES

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Defendants Jeffrey Slott and Law Offices of Jeffrey Slott, APC's Motion to Quash
Doe Amendment

The appearances of the parties are required at the hearing.

Defendants Jeffrey Slott and Law Offices of Jeffrey Slott, APC's Demurrer to the
Complaint

The appearances of the parties are required at the hearing.

Defendants Jeffrey Slott and Law Offices of Jeffrey Slott, APC's Motion to Strike
Portions of the Complaint

The appearances of the parties are required for the hearing.

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12. S-CV-0054278 RAMOS, CARLI v. PIIRU, WILLIAM

Adam Ambrozy, Esq.'s Motion to be Relieved as Counsel for Plaintiff Carli Ramos

The unopposed motion is granted.

Adam Ambrozy, Esq. shall be relieved as counsel of record for plaintiff Carli Ramos upon the filing of the proof of service of the signed order after hearing on plaintiff Carli Ramos.

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13. S-CV-0054584 MGP XI US PROP v. WADE, JOSH

This tentative ruling is issued by the **HONORABLE MICHAEL W. JONES**:

Defendant's motion for summary judgment is continued to **OCTOBER 1, 2026 at 8:30 A.M. in DEPARTMENT 3** to be heard by the **HONORABLE MICHAEL W. JONES**.

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14. S-CV-0054789 WEBB, JORDAN v. GENERAL MOTORS

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Plaintiff's Motion for Attorneys' Fees and Costs

The motion is granted.

The court has carefully considered the number of hours expended by counsel along with the hourly rates for comparable work within Placer County and awards \$11,767.50 broken down as follows:

NAME	RATE	HOURS	TOTAL
Tim Whelan	\$425/hr	5.9	\$ 2,507.50
A. Valitskaya	\$400/hr	17.9	\$ 7,160.00
I. Gonzalez	\$375/hr	5.6	\$ 2,100.00
TOTAL		29.4	\$11,767.50

The court has carefully considered the issues presented in the case; the nature and extent the litigation precluded other employment for counsel; and the contingent nature of any fee award and declines to apply either a positive or negative multiplier. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.)

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15. S-CV-0054825 TREADUP, MATTHEW v. VIOLET HLDS

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Defendants Violet Holdings, LLC and Jill Chang's Demurrer to the First Amended
Complaint and Motion to Strike Portions of the First Amended Complaint

The appearances of the parties are required for the hearing.

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16. S-CV-0054854 DARBEE, JONATHAN v. SUNRUN

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Defendant Sedgwick Claims Management Services, Inc.'s Motion for Terminating Sanctions and/or Dismissal

The motion is granted.

Defendant's request seeks several forms of relief, including a request for dismissal pursuant to Code of Civil Procedure section 583.150. This section recognizes the court's inherent authority to dismiss an action. (*Lyons v. Wickhorst* (1986) 42 Cal.3d 911, 915.) Such dismissals, however, act much like terminating sanctions and should only be considered in extreme situations where the conduct is clear, deliberate, and there is no lesser alternative to remedy the situation. (*Id.* at p. 917.)

Defendant brought a successful motion to compel arbitration on July 17, 2025 and this matter was stayed pending the parties' participation in mediation. Plaintiff has not taken any steps to initiate arbitration since the order entered more than a year ago. An OSC regarding the status of mediation was heard on March 16, 2026 where plaintiff failed to appear. Plaintiff has also failed to file any opposition to the current motion. The court finds plaintiff's failure to participate in arbitration; failure to appear at the OSC hearing; and failure to respond to the current motion is clear and deliberate conduct where plaintiff has failed to comply with the court's orders and failed to prosecute the current action. The court further finds that the circumstances are extreme with no lesser alternative remedy available other than dismissal. For the foregoing reasons, the motion is granted.

The court dismisses the current action pursuant to Code of Civil Procedure section 583.150.

The OSC re status of case is dropped from the calendar.

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17. S-CV-0055048 KHUMALO, LEEAH v. PENNEY OPCO

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Defendant Penney OPCO, LLC's Motion to Compel Further Responses to Form Interrogatories – General (Set One)

The motion is granted.

Plaintiff shall provide verified responses, without further objections, to form interrogatories, general set one, nos. 6.4 through 6.7, by August 28, 2026.

Defendant Penney OPCO, LLC's Motion to Compel Further Responses to Requests for Production of Documents (Set One)

The motion is granted.

Plaintiff shall provide verified responses and responsive documents, to request for production of documents, set one, nos. 21, 24, 25, and 26 by August 28, 2026. Plaintiff shall also provide a code-compliant privilege log for any privilege objections asserted.

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18. S-CV-0055089 AVK BUILDERS v. POLIVODA, NIKOLAY

The reserved hearing for defendant's motion to dismiss is dropped from the calendar as no moving papers were filed with the court.

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19. S-CV-0056028 JANSEN, DANIEL v. J.B. HUNT TRANSPORT SERV

Plaintiff's six discovery motions are continued to **AUGUST 21, 2026 at 8:30 A.M. in DEPARTMENT 1 to be heard by COMMISSIONER CHRISTINE S. DEHR** pursuant to the August 5, 2026 order.

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20. S-CV-0056119 ISMAIL, SELAM v. JANG DDS INC

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Defendant's Amended Demurrer to the First Amended Complaint (FAC)

The demurrer is sustained with leave to amend.

In the current request, the defendant demurs to all six causes of action alleged in the first amended complaint (FAC). A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court has carefully reviewed all six causes of action, providing the most liberal construction to the pleading. The allegations within each of the six claims fail to allege sufficient facts to support any of the causes of action. For these reasons, the demurrer is sustained in its entirety.

The second amended complaint shall be filed and served by August 22, 2026.

Defendant's Amended Motion to Strike Portions of the First Amended Complaint (FAC)

The motion is sustained with leave to amend. A review of the challenged allegations within the FAC show that plaintiff fails to allege sufficient facts to support the request for punitive damages.

The second amended complaint shall be filed and served by August 22, 2026.

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21. S-CV-0056838 SKORODUMOVA, DARIIA v. NYACK

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Defendants' Nyackk, LLC, Nyack, Inc., Kyle Wells, Stewart P. Wells, Stewart B. Wells, Nyaco, LLC, and Nyaco, Inc's Demurrer to the First Amended Complaint

The unopposed demurrer is sustained without leave to amend.

In the current request, the defendants demur to all 22 causes of action alleged in the first amended complaint (FAC). A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court has carefully reviewed all 22 causes of action alleged in the FAC. Even when giving the pleading the most liberal construction and deeming all the factual allegations to be true, plaintiffs fail to allege sufficient facts to support any of the claims. Thusly, the demurrer is properly sustained.

The court notes that plaintiffs have failed to oppose the demurrer, which is interpreted as plaintiffs having abandoned their claims. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) In light of this, the demurrer is sustained without leave to amend.

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22. S-CV-0057096 IRPO BURKS, TAMRA

This tentative ruling is issued by the **Honorable Leon A. Dixon**. If oral argument is timely requested, it will be heard on **August 17, 2026, at 8:30 a.m. in Department 41**.

Real Party in Interest Aaryn'Camri Smith's Application to Vacate and Set Aside Judgment

Preliminary Matters

The court, on its own motion, takes judicial notice of the court record in the matter of S-DR-0066681. Pursuant to Evidence Code section 455, if the parties wish to address judicial notice, the parties may do so at the hearing.

Ruling on Application

On February 20, 2026, Jermain Newell and Tamra Burks—parents and joint legal custodians of Kennedy Jordyn Smith—filed a name change petition to change Kennedy Jordyn Smith's name to Kennedy Jordyn Newell. They were the only parties listed as parents on the petition. On June 15, 2026, the court granted the petition in case number S-CV-0057096.

On July 21, 2026, Aaryn'Cammri Smith applied ex parte to vacate and set aside the court's June 15, 2026, order. The court set the application on a shortened notice for hearing.

According to the May 2, 2025, Stipulation and Order for Custody and/or Visitation in case number S-DR-0066681, Aaryn'Cammri Smith, Jermain Newell, and Tamra Burks share joint legal and physical custody of Kennedy. Aaryn'Cammri contends the court's order changing Kennedy's last name is void because Aaryn'Cammri was not served with the petition, the order violates the parties' stipulation, Aaryn'Cammri does not consent to the name change, and the order was obtained through fraud.

Code of Civil Procedure section 1277 outlines the notice process for name change petitions. Notably, a copy of the court's order to show cause must be published in a newspaper of general circulation for 4 weeks. (Code Civ. Proc., § 1277(a)(2)(A).) Moreover, "if a petition has been filed for a minor by a parent and the other parent, if living, does not join in consenting thereto, the petitioner shall cause, not less than 30

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days before the hearing, to be served notice of the time and place of the hearing or a copy of the order to show cause on the other parent pursuant to Section 413.10, 414.10, 415.10, or 415.40.” (*Id.* at subd. (a)(4).) If the court’s order cannot reasonably be personally served on the other parent, “the court may order that notice be given in a manner that the court determines is reasonably calculated to give actual notice to the nonconsenting parent.” (*Ibid.*)

Here, there is insufficient evidence that Aaryn’Cammri Smith, as a parent with joint legal custodian of Kennedy Jordyn Smith, was personally served with the court’s order to show cause or the name change petition, or that the court permitted alternative service of its order to show cause on Aaryn’Cammri Smith. Accordingly, Aaryn’Cammri Smith’s motion is granted. (Code Civ. Proc., § 473, subd. (d).) The court’s decree changing name filed on June 15, 2026, is set aside.

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23. S-CV-0057276 BMO BANK v. BLACK IRIS PROP

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Plaintiff's Motion to Appoint Receiver

The appearances of the parties are required for the hearing.

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24. S-CV-0057329 IRPO VARDANYAN, SARA

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Petition for Approval of Minor's Compromise for Hayk Avakyan

The petition is denied without prejudice.

The petition does not sufficiently address why the funds are not being placed in a blocked account for the minor child.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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25. S-CV-0057605 MONTES, ELEONORA v. HYUNDAI MOTOR AMER

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.**

Defendant's Motion to Compel Binding Arbitration

The appearances of the parties are required for the hearing.

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